



POLICE DEPARTMENT

April 16, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202310494 (Incident Date: October 19, 2023) regarding Detective Joseph Walsh, Tax No. 940848 (POS Case No. C-033611)

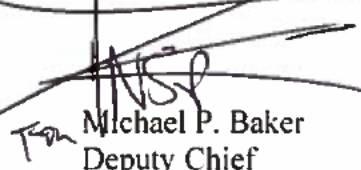
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202310494, pertaining to Detective Joseph Walsh. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Walsh would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Detective Walsh has been a member of the New York City Police Department for nineteen (19) years, has no formal disciplinary history, and no prior substantiated CCRB allegations.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of one (1) vacation day for the substantiated allegations.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

April 18, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202310494 (Incident Date: October 19, 2023) involving Detective Joseph Walsh Tax No. 940848 (PODS No. C-033611)

Dear Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated April 16, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intention to “retain jurisdiction over this matter” and “direct the issuance of a Schedule ‘B’ Command Discipline with the forfeiture of one (1) vacation day.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that “the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline” as Detective Walsh has no formal disciplinary history and no prior CCRB allegations during his nineteen (19) year tenure with the Department.

CCRB acknowledges the fact that Detective Walsh has no formal disciplinary history and no prior CCRB allegations, but CCRB still requests that you allow these Charges and Specifications to be served on Detective Walsh and permit CCRB to prosecute Detective Walsh for this misconduct. If CCRB was permitted to prosecute this case and Detective Walsh was to accept responsibility for the misconduct, CCRB would offer a Command Discipline Schedule B and the forfeiture of one (1) vacation day and move to dismiss the charges in consideration of that plea.

Respectfully submitted,

Andre D. Applewhite

Andre D. Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202310494 (Incident Date: October 19, 2023) regarding Detective Joseph Walsh, Tax No. 940848 (PODS Case No. C-033611)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 18, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Joseph Walsh, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Walsh for the reasons expressed in my April 16, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that Detective Walsh be issued a Schedule "B" Command Discipline with the forfeiture of one (1) vacation day for the substantiated allegations.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office